

IN THE HIGH COURT OF JUDICATURE AT BOMBAY
CIVIL APPELLATE JURISDICTION

WRIT PETITION NO.3866 OF 2025

SATISH
RAMCHANDRA
SANGAR

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SATISH RAMCHANDRA
SANGAR

Date: 2026.04.08
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Smt.Bharati Prakash Gala

Alias Bharati Balaram Mhatre,

Age : 54 Years, Occupation : Household,

Residing at : 182, Gala Niwas, Kolbad Road,

Thane (West).

...Petitioner

Versus

1. **State of Maharashtra,**

Through Principal Secretary,

Mantralaya, Mumbai **and Others...**

...Respondents

Mr.Amol Mhatre, Advocate for Petitioner.

Ms.Priyanka B. Chavan, AGP, for Respondent No.1 – State.

Mr.Vikas More h/f Ms.Chaitrali Deshmukh, Advocate for Respondent
Nos.2 to 5–Thane Municipal Corporation.

CORAM : M.S.KARNIK &
S. M. MODAK, JJ.

DATE : 2nd APRIL 2026

ORDER : (PER : S.M.MODAK, J.)

1. By this Petition, the Petitioner who is the owner of the land, is praying for issuing directions against Respondent Nos.2 to 5 to take appropriate action in respect of illegal and unauthorized construction carried out on her own land bearing Survey No.17/1 situate at village Dive, Taluka and District : Thane. She is residing at Thane whereas the

land is situated at Diwa. She wants to suggest that in her absence, someone has carried out unauthorized construction on her land without her permission. The Respondent No.6 – B R Construction has carried out a construction of chawl on her land and two rooms were sold to Respondent No.7 and Respondent No.8.

2. It is her further case that even though she has brought it to the notice of Assistant Commissioner, Thane Municipal Corporation vide her letter dated 12th August 2024, to take action against the said unauthorized construction, she pleads that though the Corporation has proceeded in that direction, has not reached to its logical conclusion. A copy of the said complaint is annexed to the Petition.

3. Even the Corporation has issued a notice to Respondent Nos.7 and 8 and called for the necessary documents. Even the spot was inspected by the concerned officials of Thane Municipal Corporation. Even her case is that she has sought information as per the provisions of Right to Information Act, 2005 (“**RTI**”) and the Corporation has replied that in their record, the said construction is recorded as unauthorized. The reply given by the Corporation dated 13th February 2025 is annexed.

4. On this background, the present Petition is filed. Considering the

limited request made in this Petition, we have decided to hear learned Advocate for the Petitioner and learned Advocate for Respondent Nos.2 to 5 and decided to pass appropriate orders.

5. It is true that the responsibility to take action in respect of unauthorized construction is on Planning Authority and in this case, it is the Thane Municipal Corporation. The citizen can make complaint to the Planning Authority and the Planning Authority can only ascertain whether the construction is unauthorized or not. Even as per the law, they are empowered to take action for unauthorized construction.

6. It is the case of the Petitioner that unfortunately even though the construction is recorded as unauthorized, the officials have restricted themselves by asking for necessary information but have not proceeded further. When we have perused the documents annexed to the Petition, we find two sale-deeds executed between Respondent No.6 and Respondent No.7 and another sale-deed executed with Respondent No.6 and Respondent No.8.

7. So also, there are affidavits executed by Respondent No.7 and 8. We have perused them. We find that there is reference that the rooms which they have purchased are unauthorized. Even he contends that it

is the responsibility of concerned officials of Planning Authority if satisfactory explanation is not given to notice issued as per the provisions of Section 260 of Maharashtra Municipal Corporations Act, 1949 (“**MMC Act**”). For that purpose, he has referred the provisions of Section 397A(2) of MMC Act. If the concerned officials fails to take action in pursuance to the notice, they are liable for certain punishment. In this Petition, we are not dealing with the said issue but we are dealing with the issue whether directions can be given.

8. If the Corporation Authorities have already inspected the spot and decided to issue notice, then the natural corollary is that further action is required to be taken. Hence we are inclined to allow the Petition by passing following order:-

ORDER

- (i) The Respondent Nos.2 to 5 are hereby directed to take further action in pursuance to the notice issued to the Respondent Nos.7 and 8.
- (ii) It is made clear that they are supposed to take action if there is no legal impediment for issuing or passing further directions, that is to say, whether the stay is granted by Civil Court or not.
- (iii) They are directed to take action within a period of 12 weeks from communication of this order. They are directed to take

the concerned decision by hearing the Respondent Nos.6,7 and 8.

(iv) The Petitioner to communicate this order.

9. With these observations, **the Writ Petition is disposed of.**

(S. M. MODAK, J.)

(M. S. KARNIK, J.)